

ORDER SHEET

Case No. Crl. Misc. No.15132/B/2015

The State & another

4. It has been noticed that earlier, the petitioner was granted post arrest bail in the subject FIR vide order dated 24.12.2013 passed by the learned Additional Sessions Judge, Kasur, conditionally on the basis of a compromise arrived at between the parties. Due to non-fulfilment of the condition of payment of amount settled between the parties, the post arrest bail granted to the petitioner was cancelled by the learned Additional Sessions Judge, Kasur, vide order dated 16.10.2014, where-after, the petitioner absented himself from the proceedings of trial and ultimately, he was arrested on 13.09.2015. Since then, he is behind

the bars. Prior to the cancellation of his post arrest bail by the learned Additional Sessions Judge, Kasur, the petitioner kept joining the process of trial between 24.12.2013 and 16.10.2014 but the prosecution did not produce evidence and as such, the trial could not be concluded. Even after his re-arrest on 13.09.2015 and submission of fresh challan on 30.09.2015 till today, no material and noticeable progress has been made in the trial proceedings. The offence alleged against the petitioner does not fall under the prohibitory clause of Section 497 of the Criminal Procedure Code, 1898 and he, having no previous criminal record at his credit, is no more required for investigation purpose. In such an eventuality, the petitioner is not to be kept incarcerated till indefinite period especially when prior to the cancellation of his bail, he incessantly remained present before the learned trial court for a period of about ten months which reflects his good conduct in joining the process of law. The registration of criminal case for offence punishable under Section 489-F of Pakistan Penal Code, 1860, is not to be used as a tool for the recovery of amount for which law provides a separate remedy under the Civil Procedure Code, 1908.

5. For all discussed above, this Court is of the view that keeping the petitioner further behind the bars would not be lucrative to the prosecution hence, the instant petition is allowed and petitioner is admitted to post arrest bail subject to his furnishing bail bonds in the sum of Rs.2,00,000/-with two sureties each in the like amount to the satisfaction of learned trial court.

(Syed Shahbaz Ali Rizvi)
Judge

Approved for reporting.

Judge

Nazir